LEGAL NOTICE UNDER SECTION 80 CPC

To,
Mr. Tariq Javed
[Address]

SUBJECT: Register the sale deed and give possession of Plot No. 45, Sector B, DHA Phase-2, Islamabad within fifteen (15) days, otherwise specific performance and other legal remedies will be pursued.

FACTS

1. The complainant, Mr. Asif Mehmood, signed a written Sale Agreement with the respondent, Mr. Tariq Javed, on 15 January 2024 for the purchase of residential Plot No. 45, Sector B, DHA Phase-2, Islamabad for PKR 2,50,00,000 (Two Crore Fifty Lakh only).

2. The complainant paid the full amount by bank transfer on 20 January 2024, and the respondent acknowledged receipt of the payment.

3. The Sale Agreement clearly required the registration of the sale deed and delivery of possession within thirty (30) days of receiving full payment.

4. Despite repeated reminders and demands, the respondent has not registered the sale deed, has not handed over possession, and is now avoiding contact with the complainant.

5. This refusal is a breach of contract and constitutes dishonest, bad-faith conduct that has caused the complainant considerable loss and hardship.

LEGAL GROUNDS

1. The agreement is a valid and enforceable contract under Section 10 of the Contract Act, 1872.

2. The respondent’s failure to fulfil his contractual duties is a breach punishable under Section 73 of the Contract Act, 1872.

3. Section 10 of the Specific Relief Act, 1877 gives the complainant the right to specific performance – i.e., registration of the deed and delivery of possession.

4. Sections 54 and 108 of the Transfer of Property Act, 1882 impose on the seller the duty to execute and register the sale deed and to deliver possession to the buyer.

5. Section 80 of the Code of Civil Procedure, 1908 requires service of a notice before filing a suit for specific performance.

DEMAND

In view of the above, the respondent must, within fifteen (15) days of receiving this notice:

a) Arrange for the registration of the sale deed in favour of Mr. Asif Mehmood with the appropriate authorities; and

b) Deliver peaceful possession of Plot No. 45, Sector B, DHA Phase-2, Islamabad to the complainant.

FAILURE TO COMPLY

If the respondent does not meet the above demand within the stated time, the complainant will, at the respondent's risk and cost, commence civil proceedings for specific performance, claim damages, and seek any other relief available under the Specific Relief Act, 1877, the Transfer of Property Act, 1882 and the Contract Act, 1872, including a suit under Section 80 CPC. The complainant also reserves the right to pursue criminal action for fraud and cheating if necessary.

Yours faithfully,

[Advocate Name]
Advocate, High Court of Pakistan
On behalf of Mr. Asif Mehmood
[Date]